

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
DOMONIQUE GIST,

Plaintiff,

Index No.:

Date Filed:

-against-

Plaintiff designates  
KINGS COUNTY  
as the place of trial

THE CITY OF NEW YORK, P.O. PETER M.  
BESSE [SHIELD # 19892], SERGEANT  
FRANCISCO DELOSSANTOS [SHIELD #  
9057], P.O. DAVID L. MERCADO [SHIELD  
# 11610], SERGEANT GREGG M. MINARDI  
[TAX REG. # 940475], and JOHN DOE  
AND JANE DOE #1-10 (the names John and  
Jane Doe being fictitious, as the true names  
are presently unknown),

Defendants.  
-----X

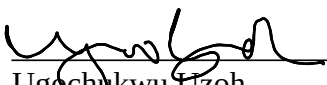
**SUMMONS**

To the above named Defendant(s):

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this amended summons, to serve a notice of appearance on the Plaintiff's Attorneys within twenty days after the service of this amended summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this amended summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York  
September 26, 2019

UGO UZOH, P.C.

By: 

Ugochukwu Uzoh

Attorney for the Plaintiff

56 Willoughby Street, Third Floor

Brooklyn, New York 11201

(718) 874-6045

To:

THE CITY OF NEW YORK

LAW DEPARTMENT [CORPORATION COUNSEL]

100 Church Street

New York, NY 10007

P.O. PETER M. Besse [Shield # 19892]  
NYPD-72nd Precinct  
830 4th Ave.  
Brooklyn, NY 11232

Sergeant Francisco Delossantos [Shield # 9057]  
NYPD-72nd Precinct  
830 4th Ave.  
Brooklyn, NY 11232

P.O. David L. Mercado [Shield # 11610]  
NYPD-77th Precinct  
127 Utica Ave.  
Brooklyn, NY 11213

Sergeant Gregg M. Minardi [Tax Reg. # 940475]  
NYPD-77th Precinct  
127 Utica Ave.  
Brooklyn, NY 11213

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
DOMONIQUE GIST,  
Plaintiff,

Index No.

**COMPLAINT**

-against-

THE CITY OF NEW YORK, P.O. PETER M.  
BESSE [SHIELD # 19892], SERGEANT  
FRANCISCO DELOSSANTOS [SHIELD #  
9057], P.O. DAVID L. MERCADO [SHIELD  
# 11610], SERGEANT GREGG M. MINARDI  
[TAX REG. # 940475], and JOHN DOE  
AND JANE DOE #1-10 (the names John and  
Jane Doe being fictitious, as the true names  
are presently unknown),  
Defendants.

-----X  
Plaintiff, DOMONIQUE GIST, by his attorney, The Law Offices of UGO UZOH, P.C.,  
complaining of the defendants herein, The City of New York, P.O. Peter M. Besse  
[Shield # 19892], Sergeant Francisco Delossantos [Shield # 9057], P.O. David L.  
Mercado [Shield # 11610], Sergeant Gregg M. Minardi [Tax Reg. # 940475], and John  
Doe and Jane Doe #1-10 (collectively, "defendants"), respectfully alleges as follows:

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

COMPLIANCE WITH N.Y. GEN. MUN. LAW REQUIREMENTS

2. Plaintiff timely made and served a notice of claim upon the defendants in compliance with N.Y. Gen. Mun. Law § 50-e.
3. At least thirty days have elapsed since the service of aforesaid notice of claim and adjustment or payment thereof has been neglected or refused.

4. This action is commenced within one year and ninety days after the happening of the event(s) upon which the claim(s) is based.

THE PARTIES

5. Plaintiff is and was at all times material herein a resident of Brooklyn, County of Kings, City and State of New York.
6. Defendant City of New York ("City") is a municipal corporation duly organized and existing under the laws of the State of New York.
7. The City of New York Police Department ("NYPD") is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.
8. Defendant P.O. Peter M. Besse [Shield # 19892] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
9. Defendant Sergeant Francisco Delossantos [Shield # 9057] was at all times material herein a sergeant employed by the NYPD. He is named here in his official and individual capacities.
10. Defendant P.O. David L. Mercado [Shield # 11610] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
11. Defendant Sergeant Gregg M. Minardi [Tax Reg. # 940475] was at all times material herein a sergeant employed by the NYPD. He is named here in his official and individual capacities.
12. Defendants John Doe and Jane Doe #1-10 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
13. Defendants Besse, Delossantos and John Doe and Jane Doe are collectively referred to herein as "Besse defendants".
14. Defendants Mercado, Minardi, and John Doe and Jane Doe are collectively referred to herein as "Mercado defendants".
15. Besse defendants, Mercado defendants, and John Doe and Jane #1-10 are collectively referred to herein as "defendant officers".

16. At all times material to this Complaint, the defendant officers acted toward plaintiff under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

The March 26, 2018, Incident

17. On or about March 26, 2018, at approximately 9:00 p.m., Besse defendants, acting in concert, arrested plaintiff without cause at or close to the corner of 7th Avenue and 45th Street, Brooklyn, New York, and initially charged plaintiff with N.Y. PL 265.02(1) ‘Criminal possession of a weapon in the third degree’, N.Y. PL 265.01(1) ‘Criminal possession of a weapon in the fourth degree’, and N.Y. VTL 1229-c(3) ‘Operation of vehicles with safety seats and safety belts’.
18. Plaintiff, however, was not in possession of any weapon, and did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
19. Prior to the arrest, plaintiff was driving home seat-belted in his car with some of his friends, including Sianna Stewart, and Shaheim Rogers, after playing a pickup basketball game at the Sunset Park Recreation Center (“Center”).
20. Immediately after pulling out from the Center, he pulled over by Besse defendants.
21. Upon approach, the plaintiff enquired as to the reason why he was pulled over.
22. Besse defendants immediately directed the plaintiff and his friends to step out of the vehicle.
23. Shortly thereafter, Besse defendants forcibly grabbed the plaintiff, pulling and pushing him, and proceeded to tightly handcuff the plaintiff with his hands placed behind his back causing the plaintiff to experience pain and numbness in his hands.
24. Besse defendants subjected the plaintiff to an illegal search.

25. Besse defendants' illegal and warrantless search of the plaintiff did not yield any contraband.
26. Besse defendants eventually placed the plaintiff inside their police vehicle and transported the plaintiff to NYPD-72nd Precinct.
27. Upon information and belief, Besse defendants seized or impounded the vehicle and drove it to the precinct, and eventually released the vehicle to plaintiff's relative.
28. Plaintiff repeatedly inquired as to the reason for his arrest.
29. Besse defendants ignored the plaintiff's inquiries.
30. While at the precinct, Besse defendants further subjected the plaintiff to an illegal and unlawful search.
31. Besse defendants did not recover any contraband from their unlawful search of the plaintiff.
32. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiff saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
33. After detaining the plaintiff at the precinct for a lengthy period of time, plaintiff was transported to the Central Booking.
34. At some point following the plaintiff's arrest, Besse defendants met with prosecutors employed by the Kings County District Attorney's Office.
35. During this meeting, Besse defendants falsely stated to the prosecutors, among other things, that the plaintiff was in possession of a weapon and was driving without a seatbelt.
36. Relying upon the falsified police records, reports and statements, the prosecutors initiated criminal actions against the plaintiff.
37. Plaintiff was eventually arraigned on a criminal court complaint charging him with N.Y. PL 265.01(1) 'Criminal possession of a weapon in the fourth degree', and N.Y. VTL 1229-c(3) 'Operation of vehicles with safety seats and safety belts'.
38. Upon arraignment, plaintiff was released on his own recognizance.

39. Plaintiff was required to return to the criminal court to defend the false charges levied against him.
40. On or about June 28, 2018, the false charges levied against plaintiff were summarily dismissed.

The April 27, 2018, Incident

41. On or about April 27, 2018, at approximately 1:00 a.m., Mercado defendants, acting in concert, arrested plaintiff without cause at or close to the vicinity of 1550 Sterling Place, Brooklyn, New York (“premises”), and initially charged plaintiff with N.Y. PL 265.03(3) ‘Criminal possession of a weapon in the second degree’, N.Y. PL 265.01(1) ‘Criminal possession of a weapon in the fourth degree’, and N.Y. PL 205.30 ‘Resisting arrest’.
42. Plaintiff, however, was not in possession of any weapon, did not resist any arrest, and did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
43. Prior to the arrest, plaintiff was walking home on Rochester Avenue after visiting with some of his friends nearby at the premises.
44. As plaintiff continued to make his way home, an unmarked black vehicle which the plaintiff did not recognize suddenly pulled up beside him in an aggressive manner.
45. Because the area, which is part of the plaintiff’s neighborhood, is a high crime area, plaintiff was caused to fear for his life and safety.
46. As a result, plaintiff took off and ran back to the premises.
47. The vehicle and its occupants, which turned out to be the Mercado defendants, chased after him in a hot pursuit.
48. Mercado defendants eventually caught up with the plaintiff inside the premises.
49. Upon catching up with him, Mercado forcibly grabbed the plaintiff, pulling and pushing him, and proceeded to tightly handcuff the plaintiff with his

hands placed behind his back causing the plaintiff to experience pain and numbness in his hands.

50. After handcuffing the plaintiff, Mercado proceeded to punch him in his mouth bursting his lips.
51. Mercado defendants subjected the plaintiff to an illegal search.
52. Mercado defendants' illegal and warrantless search of the plaintiff did not yield any contraband.
53. Mercado defendants eventually placed the plaintiff inside their police vehicle.
54. Mercado defendants further assaulted the plaintiff inside their police vehicle by punching, banging, and hitting him in the head and body.
55. Plaintiff requested Mercado defendants to transport him to the hospital for treatment.
56. Mercado defendants refused the plaintiff's entreaties.
57. Mercado defendants eventually transported the plaintiff to NYPD-77th Precinct.
58. Plaintiff repeatedly inquired as to the reason for his arrest.
59. Mercado defendants ignored the plaintiff's inquiries.
60. While at the precinct, Mercado defendants further subjected the plaintiff to an illegal and unlawful search.
61. Mercado defendants did not recover any contraband from their unlawful search of the plaintiff.
62. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiff saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
63. Mercado defendants seized the plaintiff's iPhone 6 and Apple Watch.
64. Mercado defendants did not issue or provide the plaintiff with any voucher specifying the properties seized from him with the constitutionally-required notice printed on the voucher describing how the plaintiff could reclaim the aforementioned properties.



65. Mercado defendants did not otherwise notify the plaintiff of any procedure he could follow to reclaim or recover his properties, and have refused to return the aforesaid properties -- including, but not limited to, the iPhone 6 and Apple Watch -- to the plaintiff.
66. Mercado defendants threatened the plaintiff with further bodily harm and forced the plaintiff to drink from a water bottle in order to retrieve his DNA.
67. Mercado defendants proceeded to unlawfully collect the plaintiff's DNA.
68. Eventually, after the plaintiff's condition had worsened, plaintiff was transported to the hospital for treatment.
69. Plaintiff was eventually transported back to the precinct.
70. After detaining the plaintiff at the precinct for a lengthy period of time, plaintiff was transported to the Central Booking.
71. At some point following the plaintiff's arrest, Mercado defendants met with prosecutors employed by the Kings County District Attorney's Office.
72. During this meeting, Mercado defendants falsely stated to the prosecutors, among other things, that the plaintiff was in possession of a weapon, resisted arrest, and prevented or attempted to prevent his arrest by swinging at and pushing off defendant officers.
73. Relying upon the falsified police records, reports and statements, the prosecutors initiated criminal actions against the plaintiff.
74. Plaintiff was eventually arraigned on a criminal court complaint charging him with N.Y. PL 265.03(3) 'Criminal possession of a weapon in the second degree', N.Y. PL 265.01-b(1) 'Criminal possession of a firearm', N.Y. PL 195.05 'Obstructing governmental administration in the second degree', N.Y. PL 205.30 'Resisting arrest', N.Y. PL 265.01(1) 'Criminal possession of a weapon in the fourth degree', and N.Y. PL 240.26(1) 'Harassment in the second degree'.
75. Bail was set to secure the plaintiff's release.
76. Because plaintiff could not make bail, plaintiff was transferred to Brooklyn Detention Complex, and was incarcerated at said facility for several days thereafter until his family was able to post bail on his behalf.

77. Plaintiff subsequently appeared before the criminal court on multiple occasions to defend the false charges levied against him.
78. On or about October 26, 2019, the false charges levied against plaintiff were summarily dismissed.
79. Many police officers assigned to NYPD-77th Precinct, which covers the plaintiff's neighborhood, are familiar with the plaintiff and his friends and family.
80. The police officers would often stop, frisk, and detain the plaintiff and his friends and family whenever they run into them, and would call out the plaintiff and his friends and family by name on a loudspeaker on the rare occasions when they do not stop or detain them.
81. Even though the plaintiff did not commit any crime, and the false charges levied against him were summarily dismissed and sealed, defendant officers retain the plaintiff's DNA and have refused to destroy or return said DNA or the results to the plaintiff.
82. Each and every officer who responded to and/or was present at the location of the arrest(s) and at the precinct and/or station house knew and was fully aware that the plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
83. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiff.
84. As a result of the aforesaid actions by defendants, plaintiff suffered and continues to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

85. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 84 of this complaint as though fully set forth herein.

86. Defendant officers arrested the plaintiff without probable cause or reasonable grounds.
87. The conduct of defendant officers, as described herein, amounted to false arrest.
88. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
89. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

90. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 89 of this complaint as though fully set forth herein.
91. Defendant officers purposely or knowingly used unreasonable force against the plaintiff.
92. There was no legitimate governmental interest in defendant officers' unnecessary and wanton infliction of pain and suffering upon the plaintiff.
93. The conduct of defendant officers, as described herein, amounted to excessive use of force.
94. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
95. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FABRICATION OF EVIDENCE - against defendant officers

96. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 95 of this complaint as though fully set forth herein.

97. Defendant officers manufactured evidence of criminality against the plaintiff which the prosecutors relied upon to initiate criminal actions against the plaintiff.
98. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of due process rights.
99. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
100. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK AND UNREASONABLE SEARCH & SEIZURE - against defendant officers

101. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 100 of this complaint as though fully set forth herein.
102. Defendant officers routinely harass the plaintiff and would often stop, frisk, search, and detain the plaintiff whenever they run into him.
103. On numerous occasions, including, but not limited to, March 26, 2018 and April 27, 2018, defendant officers unlawfully grabbed the plaintiff, tightly handcuffed him, frisked and searched him on multiple occasions, and restrained plaintiff's freedom to walk away.
104. Defendant officers did not have any reasonable grounds to believe that the plaintiff was engaged (or had planned to engage) in any criminal activity.
105. Defendant officers by their conduct as described herein subjected plaintiff to unlawful stop & frisk and unreasonable search & seizure.
106. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
107. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: UNREASONABLE DETENTION - against defendant officers

108. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 107 of this complaint as though fully set forth herein.
109. Defendant officers denied plaintiff his due process right to be free from continued detention after it was or should have been known that plaintiff was entitled to release.
110. The conduct of defendant officers, as described herein, amounted to unreasonable detention.
111. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
112. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: DELIBERATE INDIFFERENCE - against defendant officers

113. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 112 of this complaint as though fully set forth herein.
114. Defendant officers denied plaintiff treatment needed to remedy his serious medical conditions and did so because of their deliberate indifference to plaintiff's need for medical treatment and care.
115. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
116. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: MALICIOUS PROSECUTION - against defendant officers

117. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 116 of this complaint as though fully set forth herein.
118. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against the plaintiff.
119. Plaintiff was required to, and did, appear in court on multiple occasions to defend himself from the false charges levied against him with malice by defendants.
120. Eventually, the criminal proceeding(s) terminated in plaintiff's favor.
121. Because of the conduct of the defendants, plaintiff was maliciously prosecuted for a lengthy period of time.
122. The conduct of defendant officers, as described herein, amounted to malicious prosecution.
123. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
124. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

125. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 124 of this complaint as though fully set forth herein.
126. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.

127. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
128. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
129. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

NINTH CAUSE OF ACTION: FAILURE TO  
TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against  
defendant City

130. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 129 of this complaint as though fully set forth herein.
131. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, the proper procedures for obtaining, returning, destroying and/or retaining DNA, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons, and obligation to effect an arrest only when probable cause exists for such arrest.
132. Defendant City of New York, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in robbery, narcotics, drugs, guns, weapons and/or other illicit activities.

133. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
134. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the court observed that defendant City had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.
135. In *Ligon v. City of New York*, 925 F. Supp. 2d 478 (S.D.N.Y. 2013), the court determined that defendant City, acting through the NYPD, engages in unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).
136. In *Jones v. City of New York*, 603 Fed. Appx. 13 (2d Cir. 2015), Police Officer David Rodriguez arrested the plaintiff in that matter, Javier Jones, merely because he was allegedly informed that Mr. Jones was in the company of another individual named Frantz Machon who did allegedly display a weapon.
137. Officer Rodriguez was questioned at his deposition as to whether it is NYPD's policy to charge all members of a group with criminal possession of a weapon when only one group member is alleged to have possessed a firearm.
138. Officer Rodriguez, as the United States Court of Appeals for the Second Circuit observed, testified that although NYPD "does not have an official policy of charging all members of a group with criminal possession of a weapon when only one group member is alleged to have possessed a firearm, [] 'That is what we do.'" *Jones*, 603 Fed. Appx. at 15.
139. Officer Rodriguez did further elaborate that "It is like an accomplice to the person with the firearm[]" and that "the normal procedure is when you have a situation like this, everyone gets charged with the firearm because we are going off on what the victim said . . . if the victim said that [Machon] had a firearm, that is going to be the charge for everyone."



140. As the plaintiff in *Jones* successfully argued before the Second Circuit, Officer Rodriguez's testimony shows that he "is unaware that he does not have probable cause to arrest a mere bystander[]" which shows that "he has not been trained on this issue by the City [and NYPD]."
141. Here, as was true in *Jones*, defendant City has failed to train defendant officers and has failed to instill in them the fact that they lack probable cause to arrest an individual such as the plaintiff who was not engaged in any wrongful conduct and no evidence connected him to any crime or offense.
142. Defendant City has settled numerous lawsuits against several police officers assigned to the NYPD alleging, among other things, that the police officers falsely arrested the plaintiffs without probable cause, improperly obtained and/or retained their DNA, and improperly seized and/or appropriated to themselves the plaintiffs' properties and/or did not issue or provide to the plaintiffs in those cases with any vouchers specifying the properties seized from them with the constitutionally-required notice printed on the vouchers describing how the plaintiffs could reclaim their properties. *See, e.g., Eddie Holley v. City of New York* (18 CV 6487); *Warren Monk v. City of New York* (18 CV 6458); *Sianna Stewart v. City of New York* (18 CV 4841); *Julien Ford v. City of New York* (18 CV 3620); *Ramel King v. City of New York* (17 CV 4494); *Eric Davis v. City of New York* (16 CV 385); *Jimmy Wilson v. City of New York* (15 CV 6326); *Crystal Whitfield v. City of New York* (14 CV 6085).
143. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police routinely fabricate identification evidence, arrest innocent citizens without probable cause, and use excessive force in the arrest of innocent citizens.
144. As a result of defendant City's failure to properly train, supervise or discipline its police officers, defendant officers unlawfully arrested the plaintiff, incarcerated him, and abused and/or assaulted the plaintiff.

145. Defendant City maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff's injuries as described herein.
146. The actions of defendants, acting under color of State law, deprived plaintiff of his due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, the excessive use of force and the right to due process.
147. By these actions, defendants have deprived plaintiff of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

TENTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

148. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 147 of this complaint as though fully set forth herein.
149. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiff without probable cause or reasonable suspicion, and harassing and assaulting him and depriving him of due process and equal protection of laws, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.

150. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
151. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.
152. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiff's state constitutional rights.

ELEVENTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) - against defendants

153. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 152 of this complaint as though fully set forth herein.
154. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.
155. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TWELFTH CAUSE OF ACTION: TORTS (MALICIOUS PROSECUTION) - against defendants

156. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 155 of this complaint as though fully set forth herein.
157. Based on the false testimony of defendants, the prosecutors initiated criminal actions against the plaintiff.

158. Plaintiff was required to, and did, appear in court on multiple occasions to defend himself from the false charges levied against him with malice by defendants.
159. Eventually, the criminal proceedings terminated in plaintiff's favor.
160. Because of the conduct of the defendants, plaintiff was maliciously prosecuted for a lengthy period of time.
161. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION: TORTS (ASSAULT AND BATTERY) - against defendants

162. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 161 of this complaint as though fully set forth herein.
163. By reason of and as a consequence of the conduct of defendant officers, plaintiff sustained injuries with the accompanying pain.
164. The conduct of the defendants, as described herein, amounted to assault and battery.
165. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTEENTH CAUSE OF ACTION: TORTS (REPLEVIN & CONVERSION) - against defendants

166. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 165 of this complaint as though fully set forth herein.
167. At the time of the plaintiff's arrest, defendant officers seized and/or appropriated to themselves several of plaintiff's properties including his iPhone 6 and Apple Watch.
168. Defendant officers did not provide the plaintiff with any voucher for his said properties.

169. Defendant officers did not issue or provide the plaintiff with any voucher specifying the properties seized from him with the constitutionally-required notice printed on the voucher describing how the plaintiff could reclaim the aforementioned properties.
170. Defendant officers did not otherwise notify the plaintiff of any procedure he could follow to reclaim or recover his properties, and have refused to return the aforesaid properties including the iPhone 6 and Apple Watch to the plaintiff.
171. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTEENTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

172. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 171 of this complaint as though fully set forth herein.
173. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff.
174. Plaintiff's emotional distress has damaged his personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention and imprisonment by defendants.
175. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTEENTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES - against defendant City

176. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 175 of this complaint as though fully set forth herein.

177. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff to prevent the physical and mental abuse sustained by plaintiff.
178. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff or to those in a like situation would probably result from such conduct described herein.
179. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
180. Upon information and belief, defendant City's negligence in hiring and retaining defendant officers proximately caused plaintiff's injuries.

DAMAGES

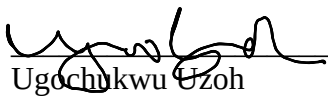
181. That by reason of the foregoing, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff respectfully prays judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York  
September 26, 2019

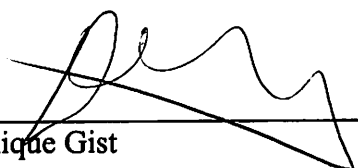
UGO UZOH, P.C.

By:   
Ugochukwu Uzoh  
Attorney for the Plaintiff  
56 Willoughby Street, Third Floor  
Brooklyn, N.Y. 11201  
Tel. No: (718) 874-6045  
Fax No: (718) 576-2685  
Email: u.ugochukwu@yahoo.com

STATE OF NEW YORK  
COUNTY OF KINGS

SS:

**DOMONIQUE GIST** being duly sworn deposes and says that he is the plaintiff in foregoing Summons and Verified Complaint. That he has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, he believes them to be true.

  
\_\_\_\_\_  
Domonique Gist

SWORN TO BEFORE ME THIS 26TH DAY

OF SEPTEMBER 2019

  
\_\_\_\_\_  
NOTARY PUBLIC

UGOCHUKWU UZOH  
Notary Public - State of New York  
No. 02UZ618-083  
Qualified in Kings County  
My Commission Expires Jan. 22, 2020



**THE SUPREME COURT OF THE  
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART \_\_\_\_ OF THE SUPREME COURT  
OF THE STATE OF NEW YORK, KINGS COUNTY,  
BOROUGH OF BROOKLYN, CITY OF NEW YORK  
ON THE \_\_\_\_ DAY OF \_\_\_\_, 20\_\_

DOMONIQUE GIST,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. PETER M.  
BESSE [SHIELD # 19892], SERGEANT  
FRANCISCO DELOSSANTOS [SHIELD #  
9057], P.O. DAVID L. MERCADO [SHIELD  
# 11610], SERGEANT GREGG M. MINARDI  
[TAX REG. # 940475], and JOHN DOE  
AND JANE DOE #1-10 (the names John and  
Jane Doe being fictitious, as the true names  
are presently unknown),

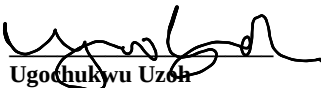
Defendants.

**SUMMONS**

**&**

**VERIFIED COMPLAINT**

**CERTIFICATION:** I hereby certify that all papers that I  
have served, filed or submitted to the court in the within  
action are not frivolous pursuant to Sec. 130-1.1a of the  
Rules of the Chief Administrator (22NYCRR)

  
Ugo Uzoh

9/26/19

Dated

**Ugo Uzoh, P.C.**

Attorneys for plaintiff  
Office & Post Office Address

**56 WILLOUGHBY STREET, THIRD FLOOR  
BROOKLYN, NY 11201**

**TEL: (718) 874-6045**